

SENATE No. 3235

Senate, July 30, 2026 - Substituting a new draft (Senator Fernandes) for the Senate Bill relative to the Pilgrim Memorial Park in Plymouth (Senate, No. 3187).

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to the Pilgrim Memorial Park in Plymouth.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 (a) Notwithstanding any general or special law to the contrary, the commissioner of
2 capital asset management and maintenance, in consultation with the commissioner of
3 conservation and recreation, may enter into a 25-year lease with the town of Plymouth for the
4 fields and facilities, together with the land and appurtenances of a parcel of land known as the
5 Pilgrim Memorial State Park, which is located at 79 Water street, in the town of Plymouth. The
6 lease may provide for improvements to the field and facilities, together with the land and
7 appurtenances.

8 (b) Any lease executed under this section shall be on terms, conditions and consideration
9 acceptable to the commissioner of capital asset management and maintenance, in consultation
10 with the commissioner of conservation and recreation, and may be renewed decennially for 10-
11 year terms at the discretion of the parties named above; provided, however, that any lease
12 entered into pursuant to this section shall provide that: (i) the town of Plymouth shall provide
13 general oversight for land, facilities, fields and appurtenances associated therewith during the

14 term of the lease; (ii) the town of Plymouth shall carry comprehensive general liability insurance
15 naming the commonwealth as a co-insured, to protect the commonwealth against all claims for
16 personal injury or property damage arising from or on land and appurtenances associated
17 therewith during the term of the lease; (iii) Pilgrim Memorial State Park shall be accessible to the
18 general public when not in use by permittees; (iv) the town of Plymouth shall not design or
19 construct any facilities on the parcel without the written approval of the commissioner of capital
20 asset management and maintenance and the commissioner of conservation and recreation; (v) the
21 town of Plymouth shall be responsible for all utility costs, subject to the lease, and for the
22 general day-to-day maintenance of Pilgrim Memorial State Park; and (vi) the town of Plymouth
23 shall have sole responsibility for the development of rules and the establishment of fees for the
24 use of Pilgrim Memorial Park."